

26LBCV00049 26LBCV00049

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-25

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Case Number: 26LBCV00049 Hearing Date: August 25, 2026 Dept: S27

1.

Background Facts

Plaintiff filed his operative First Amended Complaint on 3/18/26. The FAC includes causes of action for IIED, trespass, negligence, and tenant harassment, and seeks monetary damages and injunctive relief. The substantive allegations of the FAC are found at ¶¶7-10, wherein Plaintiff alleges:

7. Defendant Andrew Bish

personally engaged in a pattern of harassment, intimidation, and unauthorized conduct directed at Plaintiff.

8. Defendant repeatedly appeared at Plaintiff's residence without notice or lawful authority, including entering Plaintiff's driveway and attempting to access the premises.

9. Defendant engaged in threatening and confrontational conduct, which at times required police involvement.

10. Defendant's conduct was intentional and directed at Plaintiff personally.

2. Prior

Hearing on Demurrer to FAC

The Court was originally scheduled to hear this demurrer on 7/14/26. The Court held Plaintiff's allegations in his original complaint must be read into

his allegations in his First Amended Complaint, but continued the hearing to require the parties to brief the issue of whether Defendant's status as an unlicensed property manager precludes a finding that the prior lawsuit bars the instant lawsuit due to claim preclusion and/or res judicata. The Court also ordered the parties to meaningfully meet and confer prior to the continued hearing date.

3. Continued

Hearing and Supplemental Briefing

The parties met and conferred, but were unable to resolve their issues. The Court notes that the parties, in their supplemental briefs, focus on the issue of whether a lawsuit against an agent that sounds in tort is barred by the settlement of a similar lawsuit against the agent's principal; the parties do not focus their attention on the issue of the defendant's property management licensure status, and appear to agree that this is not the issue upon which the analysis turns. The Court has therefore also focused on the issue presented by the parties in their briefs.

Both parties rely extensively on *DKN Holdings, LLC v. Faerber* (2015) 61 Cal.4th 813 to support their positions. The Court has focused its inquiry on DKN in determining whether this action is barred in light of the prior settlement.

In DKN, the landlord sued one tenant for money due under the lease.

The landlord obtained a judgment, and then later sued the two co-tenants for the same money due. The trial court

dismissed the case and the court of appeals affirmed. The Supreme Court, however, reversed. It considered both claim preclusion and issue

preclusion, and held that neither operated as a bar to the lawsuit. The Supreme Court made clear that the mere fact that two persons are joint tortfeasors does not render them "in privity" with each other for purposes of application of the doctrine. The Supreme Court held (citations omitted):

Nor does joint and several liability put co-obligors in privity with each other. As applied to questions of preclusion, privity requires the sharing of "an identity or community of interest," with "adequate representation" of that interest in the first suit, and circumstances such that the nonparty "should reasonably have expected to be

bound" by the first suit. (citations.) A nonparty alleged to be in privity must have an interest so similar to the party's interest that the party acted as the nonparty's "virtual representative" in the first action. (citations.) Joint and several liability alone does not create such a closely aligned interest between co-obligors. The liability of each joint and several obligor is separate and independent, not vicarious or derivative. (citations.) Thus, joint and several obligors are not considered to be in privity for purposes of issue or claim preclusion. (citation)

Defendant argues DKN bars the claims against him because "when the later defendant's liability is entirely derivative of the liability of a party in the earlier action, the later defendant stands in privity with that party and claim preclusion may bar the second action." Defendant, however, is flipping derivative liability on its head.

In both the prior lawsuit and this lawsuit, Plaintiff is suing based on Defendant's conduct. In the prior lawsuit, Plaintiff sued Do, alleging she was derivatively liable for Defendant's conduct. In this case, he sues Defendant, alleging Defendant is personally liable for his own conduct. There are no allegations, in either lawsuit, that Defendant is derivatively liable for Do's conduct, only the opposite.

Defendant relies on the portion of DKN that cites *Lippert v. Bailey* (1966) 241 Cal.App.2d 376, 382 to support his position that the doctrine also works in the direction he is urging. In this portion of the ruling, the DKN Court held (citations omitted):

The cases Faerber relies on do not suggest otherwise. They involve derivative liability, not joint and several liability. For example, in *Lippert v. Bailey* (citation), the plaintiff was precluded from suing insurance agents after he settled with the insurance company for the same loss. Because these agents had no liability apart from that of their principal (citation), the defendants were in privity with the insurance company, and were thus effectively the same parties for purposes of preclusion. When a defendant's liability is entirely derivative from that of a party in an earlier action, claim preclusion bars the second action because the second defendant stands in privity with the earlier one. (citations.) The nature of derivative liability so closely aligns the separate defendants'

interests that they are treated as identical parties. (citation.) Derivative liability supporting preclusion has been found between a corporation and its employees (citations), a general contractor and subcontractors (citation), an association of securities dealers and member agents (citation), and among alleged coconspirators (citation).

In Lippert, the plaintiff suffered a fire loss. The plaintiff's insurance company denied the claim, and the plaintiff sued the insurance company. They ultimately settled the case. The plaintiff then proceeded against the insurance agent. The trial court dismissed, and the court of appeals affirmed. The case, however, centered on contract law principles, with the court of appeals noting that an agent who signs a contract on behalf of his principal creates a binding obligation on the part of the principal, not on the party of the agent.

Plaintiff herein, however, is suing in tort. Under tort law, when an agent commits a tort, the agent is individually liable for the tort, but the agent's principal is also derivatively liable for the tort. See Civil Code §2343.

In light of the lack of authority holding that a tort claim against an agent is barred based on a settlement with the agent's principal, the demurrer is overruled. Defendant is ordered to file an answer to the First Amended Complaint within ten days.

4. Case Management Conference

The parties are reminded that there is a CMC on calendar concurrently with the hearing on the above demurrer. The Court asks the parties to make arrangements to appear remotely at the CMC and hearing on the demurrer.